

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
BRAYAN PICHARDO,

Plaintiff,

-against-

CITY OF NEW YORK, P.O. ANTHONY DONATO and
OFFICERS JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Plaintiff designates
BRONX County as the
place of trial
The basis of venue is:
CPLR 504 (3)

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

November 25, 2013


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Anthony Donato, Shield 028737 of the 46th Precinct
2120 Ryer Avenue Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BRAYAN PICHARDO,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. ANTHONY DONATO
and OFFICER[S] JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF BRAYAN PICHARDO PURSUANT TO 42 U.S.C § 1983

1. At the time of the commencement of this action, Plaintiff BRAYAN PICHARDO was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

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COUNTY CLERK
BRONX COUNTY

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about August 16, 2011, P.O. ANTHONY DONATO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about August 16, 2011, at approximately 2:30 P.M., P.O. ANTHONY DONATO was working and acting within the scope of her employment as a Police Officer, and under the color of law.

7. That on and about August 16, 2011, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That on and about August 16, 2011 at approximately 2:30 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

9. That on or about August 16, 2011 at approximately 2:30 P.M., at or near the intersection of Leland Avenue and Watson Avenue, Bronx, New York, the plaintiff BRAYAN PICHARDO was improperly arrested, and confined without warrant, proper

authority or justification, having no reason in law or in fact to arrest or confine BRAYAN PICHARDO.

10. That at the above time and place, plaintiff BRAYAN PICHARDO was a passenger in an automobile that was stopped by the defendants without any reasonable suspicion that a crime had been committed.

11. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

12. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement thereby causing freight, shock, emotional distress and physical consequences.

13. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

14. That the defendants P.O. ANTHONY DONATO and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an

unjust prosecution initiated without probable cause that the prosecution would succeed.

15. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and threaten and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

16. That all criminal charges brought against plaintiff, which were brought under case number 2011BX045769 in the Supreme Court of the State of New York, Bronx County regarding the incidents of August 16, 2011, were dismissed by Justice Dennis Boyle on September 11, 2012, and the criminal proceedings were terminated in plaintiff's favor.

17. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

18. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately three hundred and ninety two days.

19. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy, practice and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, and repeatedly providing false information and testimony without reprimand to the offending officers

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which results in the false arrests of innocent persons and is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority men without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and

procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist as to each arrested individual.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of stopping and searching automobiles without reasonable suspicion that a crime had been committed

22. That said illegal and unlawful automobile stops, the arrests of innocent persons without reasonable or probable cause and conducting of searches without a reasonable suspicion of the secreting of evidence, are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

23. Moreover, patterns of such unlawful automobile stops and wrongful arrests of multiple persons when individualized reasonable or probable cause is lacking and has occurred to such individuals such as for instance, RENA RODRIGUEZ, RAMON

RODRIGUEZ, Jr. and RAMON RODRIGUEZ, Sr. on or about March 20, 2010 at approximately 1 P.M., at or near the intersection of Unionport Avenue and Tremont Avenue, Bronx, New York; DANIEL TORRES on or about February 16, 2010 at approximately 7 P.M., near 3073 Park Avenue, Bronx, New York and GIOVANNI RAMIRIEZ on October 22, 2010 at or near the northeast corner of East Tremont Avenue and Waterbury Avenue, Bronx, New York.

24. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

25. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

26. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

27. That as a result of the foregoing, the plaintiff BRAYAN PICHARDO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF BRAYAN PICHARDO FOR MALICIOUS PROSECUTION

UNDER STATE LAW

28. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 27 as though more fully set forth herein.

29. That on or about November 12, 2012, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has

been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff on January 11, 2013, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

30. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

31. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

32. That the defendants P.O. ANTHONY DONATO , P.O. CAROLYN ROMERO and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

33. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without

any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing freight, shock, emotional distress and physical consequences.

34. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and threaten and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

35. That all criminal charges brought against plaintiff, which were brought under case number 2011BX045769 in the Supreme Court of the State of New York, Bronx County regarding the incidents of August 16, 2011, were dismissed by Justice Dennis Boyle on September 11, 2012, and the criminal proceedings were terminated in plaintiff's favor.

36. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

37. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately three hundred and ninety two days.

38. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

39. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

40. That as a result of the foregoing, the plaintiff BRAYAN PICHARDO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF BRAYAN PICHARDO

41. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 40 as though more fully set forth herein.

42. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

43. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper conducting automobile stops and proper arrests of individuals.

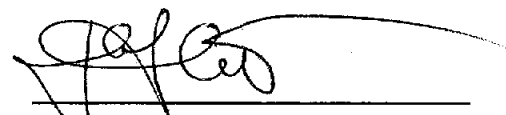
44. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff BRAYAN PICHARDO was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second and Third Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.

November 25, 2013



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiff

BRAYAN PICHARDO

888 Grand Concourse

Suite 1-O

Bronx, NY 10451

(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Anthony Donato, Shield 028737 of the 46th Precinct
2120 Ryer Avenue Bronx, NY 10457

PLAINTIFF'S VERIFICATION

BRAYAN PICHARDO affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

X Brayan Pichardo
BRAYAN PICHARDO